United Nations
Educational, Scientific and
Cultural Organization

Intangible
Cultural
Heritage

Free, prior and informed consent

Unit 22 PowerPoint presentation

UNESCO
Intangible Cultural Heritage Section

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In this presentation …

- Why free, prior and informed consent?
- An emerging standard for the rights of indigenous peoples
- Free, prior and informed consent and the Convention
- Why ‘free’? ‘prior’? ‘consent’?
- Inventorying
- Who can provide consent?
- Protection
- Positive enabling features
- Creating agreements
- Key points to consider

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Why free, prior and informed consent?

- Most ICH consists of traditional cultural expressions and traditional knowledge which are not covered by copyright legislation
- Though community ownership of culture and ICH is recognised and supported by the Convention there are few countries which have rights for communities.
- UNESCO conventions deal with State Parties and not communities. Free, prior and informed consent provides an instrument for communities
- Increasing awareness of communities who want to have rights in how their traditions are used, exploited and applied
- An emerging standard for the rights of indigenous people.
- UNESCO, UN, World Intellectual Property Organization

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An emerging standard for the rights of indigenous people

UN Declaration on the Rights of Indigenous Peoples

- Article 11
- Article 12
- Article 19

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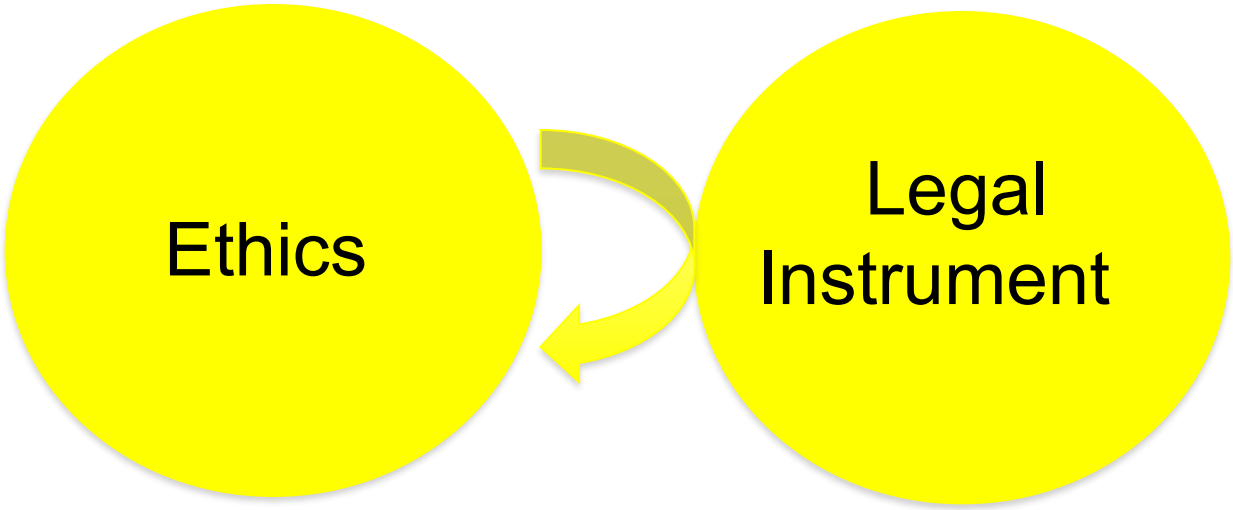
Free, prior and informed consent



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Free, prior and informed consent and the Convention (1)

Free, prior and informed consent required and process to be described

- Nomination
- Safeguarding

Free, prior and informed consent recommended

- Inventorying

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Free, prior and informed consent and the Convention (2)

- Different safeguarding measures foreseen in the Convention require the free, prior and informed consent of the community concerned.

- Free, prior and informed consent is required for the development and submission of nomination files to the Convention's Lists.

- Community consent is also required when a State Party nominates a practice for selection as a best safeguarding practice (OD 7, P.5) or when it prepares an awareness-raising activity that concerns the ICH of one or more specific groups (OD 101(b)).

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Free, prior and informed consent and the Convention (3)

- Selection criteria for inscription on the Urgent Safeguarding List, for example, includes the following:
- *U.4 The element has been nominated following the widest possible participation of the community, group or, if applicable, individuals concerned and with their free, prior and informed consent.*
- The Consultative Body charged with the examination of nominations insisted at its last session that submissions not only demonstrate that consent was given by the communities, but also describe the process of how the free, prior and informed consent was obtained.

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Why ‘free’?

- ‘Free’ implies that it is given without any pressure, manipulation or fraud.
- Freely given without any coercion, manipulation or intimidation or any fear of repercussions.
- ‘we can decide what we want and is good for us because we want to’

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Why ‘prior’?

- **‘Prior’** means that consent is given before any decisions are made or any activities are planned.
- Community concerned must be given sufficient time for their internal agreement on activities for which consent is sought in accordance with their customs.
- **Prior** to any action taking place, including planning, implementation, evaluation, and closure.
- ‘Don’t tell me to sign the paper after you have made your recording and taken photographs’

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Why ‘informed’?

- ‘Informed’ implies that the people concerned are provided in accessible way (language, format) with comprehensive information on proposed activities, including their economic, social and cultural impacts, as well as their possible consequences.

- Informed about the nature, scope, purpose, duration, benefits, impacts, risks, and personnel; accurate and with complete transparency in language the community understands.
- I am conscious

or

- I know about

or

- I heard about

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Why ‘consent’?

- The right of the target group to say **yes** or **no**, the right to form an independent opinion after being well informed.

- Consent by the representative body of the peoples involved, and includes the right to say no. In no case should consent be presumed or implied; new consent must be sought for uses other than that for which the original consent was granted.

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Inventorying and the use of free, prior, and informed consent

- Individual
- Group
- Community
- Practitioner
- Interviewee
- Head of village
- ..
- ..

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Protection

- Protect against misuse
- Protect customary practice
- Give voice to communities and practitioners
- Protect against commercial exploitation

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Positive enabling feature

- Access according to customary practice
- Ownership and pride
- Revitalisation
- Awareness raising
- Educational use
- Research
- Respect and recognition
- Nomination of ICH elements

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Creating agreements

Free, prior and informed consent: Is there a fixed format or form?

- No, the format can and should be created according to context and issues that it covers.

Who can create this document ?

- Anybody can but it is recommended that it include community representation

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Key points to consider

- Transparency
- Creating Trust
- Create involvement and ownership with inventory
- Create basis for safeguarding
- Access and Use
- Avoid false expectations

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Case study: Sikri, Nepal (1)

- Inventorying workshop held in Jiri and Sikri, with the Jirel community
- 50% of participants from Jirel community
- Translation in Jirel provided for workshop
- Jirel participants took part in exercises, role plays and sessions
- ICH elements of Jirel community presented by community members
- All participants attended a ceremony on the first day of the workshop

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Case Study: Sikri, Nepal (2)

Preparation for Fieldwork Practicum

- Elements to be inventoried decided with Jirel participants
- Introduction to Sikri, the village for fieldwork practicum by various Jirel participants
- Form for free, prior and informed consent designed with discussion and translated into Jirel
- Workshop participants from Sikri held meetings in the village to discuss the fieldwork practicum
- People from Sikri who were not workshop participants were welcome to join the fieldwork practicum

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